

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/09/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01036
CASE NAME: DAVID HADERER VS. MICHAEL HADERER
***HEARING ON MOTION IN RE: ORDER CONTINUING TRIAL DATE**
FILED BY: HADERER, MICHAEL
TENTATIVE RULING:

The March 9, 2026 hearing is VACATED per the Court's Order entered March 6, 2026.

2. 9:00 AM CASE NUMBER: C23-00358
CASE NAME: RAY SY VS. RODNEY DOTSON
***HEARING ON MOTION IN RE: FOR PROTECTIVE ORDER**
FILED BY: SEVILLA, GIN IVY
TENTATIVE RULING:

Defendant Gin Ivy Sevilla (“Defendant”) filed a Motion for Protective Order on October 22, 2025 (the “Motion for Protective Order”). The Motion for Protective Order was set for hearing on March 9, 2026. Notice of the motion was duly given. The motion is opposed.

Background

The Motion for Protective Order sought to postpone Defendant’s “deposition and the scheduled mediation currently set for October 20, 2025.” Motion for Protective Order, p. 1. This was stated to be “due to ongoing mental health and anxiety issues that currently impair her ability to participate meaningfully in the proceedings at this time.”

Opposition papers were filed on February 24, 2026, including a Request for Judicial Notice. The Request for Judicial Notice is DENIED because the truth of substantive matters contained in a filed declaration are not subject to judicial notice. The Court may, in its discretion, take judicial notice of court records. Evid. Code, § 452(d); *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145. While courts are free to take judicial notice of the existence of each document in a court file, they may not take judicial notice of the truth of facts in filed pleadings such as declarations or other documents which are reasonably subject to dispute and therefore require formal proof. *Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; see generally, Simmons, *California Evidence Manual* (2026 Edition) § 7:12. The Court, however, may simply consider the referenced document as a filed declaration in this case. The Court may consider filed declarations as evidence in connection with law and motion proceedings. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”), § 9:46.

A reply and related papers were filed on February 27, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. Code Civ. Proc. § 2025.420. Any such motion shall be accompanied by a meet and confer declaration under Section 2016.040. *Id.* The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. *Id.* at § 2025.420(b).